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Provision of March 13, 20205
Register of provisions
n. 155 of March 13, 20205

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

In today's meeting, attended by Prof. Pasquale Stanzone, President, Prof. Ginevra Cerrina Feroni, Vice President, Dr. Agostino Ghiglia and Attorney Guido Scorza, members, and Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, and on the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data (Legislative Decree No. 196 of June 30, 2003), as amended by Legislative Decree No. 101 of August 10, 2018, containing provisions for the adaptation of the national legal system to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a report dated February 2, 2023, formalized as a complaint on May 22, 2023, Mr. XX complained about the continuous receipt of promotional SMS messages from Interflora Italia S.p.A. (hereinafter, Interflora or the Company) without the possibility of opting out. In particular, the complainant stated that he had made sporadic purchases on the Company's e-commerce site without ever registering an account (accessing as a guest) but noting that, each time he wanted to place an order on said site, it was mandatory to give consent to receive promotional messages, under penalty of being unable to proceed. The complainant documented that he had already requested the intervention of the Data Protection Officer (on December 2, 2022) but had never received a response, continuing to receive unwanted SMS messages. Finally, the complainant specified that within the SMS messages received (some of which were attached to the complaint) there was no indication regarding the methods of opting out.

By certified email dated July 20, 2023, the Office requested Interflora to provide information regarding the matters raised.

The following day, Mr. XX informed the Guarantor that he had received an email from Interflora containing only the confirmation of removal from the contact lists.

Since no response was received by the Guarantor within the indicated time, with note prot. 125736 of September 8, 2023, the Office sent a reminder via certified email to respond, noting that the previous communication had been correctly notified and that the partial response provided to the complainant documented its acknowledgment.

No response was received even after the reminder, and the act to initiate the procedure was adopted with note prot. 135840 of October 3, 2023, to contest the violation of Articles 157 and 166, paragraph 2 of the Code. Due to the continued silence of the Company—a circumstance unexpected given that it is a well-known business entity in the online sale of floral arrangements—it became necessary to assign the Special Privacy and Technological Fraud Unit of the Guardia di Finanza for the notification of the act.

As a result of the searches conducted to notify the act of initiating the procedure, the Guardia di

Finanza communicated that the legal representative of Interflora was not registered as a resident in Italy; at the address of the Company's registered office, the presence of a coworking space called "Talent Garden" was found, and statements made by the reception of the facility confirmed the domiciliation of the registered office of Interflora but the total absence of dedicated offices.

The Office therefore proceeded to notify the act of initiating the procedure also via certified email with note prot. n. 49219 of April 19, 2024, acknowledging all attempts made and highlighting that, in the event of successful delivery of the certified email, the notification would be considered perfected.

On May 20, 2024, a defensive memorandum was received from the law firm appointed by Interflora, in which it was stated that the Company had undergone significant organizational changes between 2022 and 2023, resulting in the closure of the Rome office and a significant reduction in staff. For these reasons, the certified email box had not been properly monitored, being managed intermittently by the available personnel based on turnover.

On June 14, 2024, a communication was received from Attorney XX informing the Guarantor that he had received the mandate from Interflora to defend it, requesting a brief extension to examine the documents. Meanwhile, the withdrawal of the mandate by the previous defenders was also received.

On June 25, 2024, a memorandum was received in which, preliminarily, some details regarding the reasons for the lack of response were integrated, due to a drastic reduction in staff following the losses recorded after the pandemic. On the merits, it was stated that the event that occurred to Mr. XX had prompted the activation of a review of the company's procedures regarding the protection of personal data. It was also

declared that the marketing activities were based on the legitimate interest of the data controller.

Lastly, in a note dated August 1, 2024, the Company's attorney supplemented the information provided, attaching the new version of the privacy policy and stating that, based on the new procedures, the Company would collect the consents of the data subjects for the sending of promotional messages. It was also added that, until the completion of the procedure, the sending of SMS would be interrupted and the Company was in the process of deleting from its archives the data used for sending promotional SMS for which suitable consent was not available. Finally, regarding the methods of data collection at the time of the events reported by Mr. XX, on September 8, 2023, in order to verify what was stated by the complainant regarding the unlawful procedures for obtaining consents during the purchase phase, the Office accessed the website www.interflora.it observing the following. At the bottom of the website, the legal headquarters in Rome, via Giacomo Dina 36, was indicated, while in the privacy policy, the headquarters in Milan, via Arcivescovo Calabiana 6, was indicated (also as the legal headquarters). Under the "privacy policy" section, there were two documents:

- privacy policy provided pursuant to Article 13 of the Regulation (addressed to individuals making purchases through the website): it referred to the possibility of receiving promotional messages, for various purposes, exclusively via email, with no mention of the possible receipt of promotional SMS; in particular, it referred to the legal basis of legitimate interest for sending emails containing offers of products and services similar to those already purchased or for sending newsletters based on consent;
- privacy policy provided pursuant to Article 14 of the Regulation (addressed to recipients of floral gifts purchased by Interflora customers): it indicated that the data would be processed for the execution of the order and for sending an SMS "that allows you to evaluate the quality of the service provided, through the optional completion of a satisfaction questionnaire"; for this processing, the legal basis indicated was the consent of the data subject.

The procedure for purchasing a floral product was then simulated, accessing as a guest (without creating an account). To complete the purchase procedure, it was required to enter the following personal data marked as mandatory: title, first name, last name, address, mobile phone. In particular, below the box for entering the mobile phone number, the following notice was present: "the mobile number will allow the florist to make a timely delivery." There was no other information regarding the possibility of receiving promotional messages nor was consent for such messages requested.

2. THE CONTESTATION OF VIOLATIONS

In a note dated September 30, 2024 (prot. no. 113461/24), the Company was notified of the initiation of

the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, recognizing Interflora's responsibility for the alleged violation of the following provisions:

- Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code, for the sending of promotional messages via SMS to Mr. XX carried out, for a long time, without the necessary legal basis of consent;
- Article 5, paragraph 1, letters a) and b) of the Regulation, since the same method of data collection through online purchase procedures was carried out in a manner not respectful of the will of the data subjects: it was indeed required to mandatorily provide the mobile number specifying that it would be used for service purposes without any mention of possible use for promotional purposes (for which consent would still need to be obtained). This procedure was therefore considered to be carried out in violation of the principles of lawfulness, fairness, and transparency as well as purpose limitation;
- Article 12, paragraph 3 and Articles 15 and 21 of the Regulation, since the described facts indicated the failure to respond to Mr. XX's request, made on December 2, 2022 via certified email to Interflora, to know the methods of data acquisition and to oppose the processing for marketing purposes; to this request, as stated, there was no follow-up response and, to stop receiving unwanted messages, Mr. XX was forced to turn to the Authority.

3. THE DEFENSE OF THE COMPANY

The Company submitted its defense notes on October 29, 2024, in which, in addition to what had already been stated, it represented that, following a significant drop in revenue, an important corporate restructuring activity had become necessary, involving staff reductions and the transfer of the legal headquarters from Rome to Milan. In this context, Mr. XX's request had not been processed, nor had the second request from the Authority, due to a lack of constant monitoring of the email inbox.

However, as soon as the Company became aware of the situation, it proceeded to comply with the data subject's request for deletion, as confirmed by him in a note dated July 21, 2023. Regarding the other aspects of the violation, the Company confirmed that it had learned, precisely following Mr. XX's report, of the incorrect setup of the procedures aimed at collecting data.

personal data for promotional purposes and the consequent incorrect formulation of the information notice. Therefore, as already anticipated during the investigation, Interflora has taken action to implement all necessary corrective measures. To this end, it has modified the personal data collection form by inserting appropriate boxes for granting consent to receive promotional messages both via email and via SMS; consequently, it has updated the information notice, making the new version available online from October 28, 2024. Furthermore, during the same period, the Company has ceased sending promotional messages both via email and via SMS, removing the telephone numbers collected from the contact lists. Lastly, the Company, in a note dated January 21, 2025, confirmed that it has completed training on personal data protection for employees responsible for processing.

4. CONCLUSIONS

What has been outlined so far confirms that Interflora was conducting promotional activities by sending SMS to its customers without having obtained suitable consent for this purpose; moreover, it had not addressed the request for opposition to processing and access to data submitted by the complainant. Finally, it had not responded to the information request from the Authority. Therefore, based on the factual profiles highlighted above and the statements made in the response, for which the declarant is responsible under Article 168 of the Code, it is deemed appropriate to confirm the violations identified in the aforementioned contestation documents. However, it is worth making some considerations regarding the conduct of the data controller and the corrective measures adopted since Interflora, as soon as it became aware of Mr. XX's complaint, promptly proceeded to delete his data and to activate a comprehensive reorganization of corporate procedures to ensure compliance with the regulations, also interrupting the processing for promotional purposes of the data collected prior to the described changes. Also concerning the lack of response to the Authority's request, the circumstances that led to the failure to address the request, due to contingent conditions and presumably not attributable to systematic shortcomings, are noted. Therefore, having established the unlawfulness of Interflora's conduct regarding the processing examined, and considering that all violations have been remedied in

the meantime, there are no grounds for the adoption of corrective measures against the data controller; however, regarding the violations that occurred, it is necessary to adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Interflora of the administrative pecuniary sanction provided for by Article 58, paragraph 2, letter i) and 83 of the Regulation. By virtue of what is provided for by Article 154-bis, paragraph 3 of the Code, this decision will be published on the Authority's website (see also Article 37 of the internal regulation of the Authority No. 1/2019). It is also noted that the conditions referred to in Article 17 of the Authority's Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met for the annotation of the violations identified here in the Authority's internal register, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

5. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to connected processing carried out by Interflora, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or connected processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for by Article 83, paragraph 5, of the Regulation. For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, sets the maximum penalty at 20 million euros or, for companies, at 4% of the annual global turnover of the previous financial year if higher, specifying the methods for quantifying the aforementioned sanction, which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements listed in paragraph 2 to be evaluated when quantifying the related amount. In compliance with this provision, hypothesizing, based on the information available in the last financial statement (registered as of December 31, 2023), the occurrence of the first hypothesis provided for by the aforementioned Article 83, paragraph 5, and thus quantifying the maximum applicable penalty at 20 million euros, the following aggravating circumstances must be considered:

1. the severity and duration of the violations since the individuals were invited to provide their mobile number during the purchase believing that this would facilitate the delivery of the product, without being aware that the data were instead used for sending promotional SMS and without having been able to express consent.

for further purposes; it should also be added that the consequences of the conduct did not only concern the complainant but rather all individuals who had made purchases through Interflora's e-commerce portal; this conduct also persisted for a long period of time, as Mr. XX had approached the data protection officer of the Company at the end of 2022, but the first corrective measures were only implemented in June 2024 and only after the initiation of the investigation by the Authority (Article 83, paragraph 2, letter a) of the Regulation);

2. the negligent nature of the violation, given that the Company demonstrated serious negligence in adopting organizational measures that were inadequate to ensure the lawfulness of the processing carried out, especially considering that the services it offers are widely known and the volume of data collected through the e-commerce portal is vast (Article 83, paragraph 2, letter b) of the Regulation);

As mitigating factors, it is considered that the following should be taken into account:

1. the measures adopted by the data controller to mitigate the damage suffered by the data subjects, considering that Interflora voluntarily removed from the contact lists the data of all individuals who had provided them under the rules in force prior to the corrective changes, for whom the Company was unable to document the expression of appropriate consent (Article 83, paragraph 2, letter e) of the Regulation);

2. the absence of previous proceedings initiated against the Company (Article 83, paragraph 2, letter e) of the Regulation);

3. the measures implemented during the investigation to put an end to the contested violations (Article 83, paragraph 2, letter f) of the Regulation);
4. the nature of the data processed, consisting of common personal and contact data (Article 83, paragraph 2, letter g) of the Regulation).

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the overall elements mentioned above - an administrative sanction of a payment of €40,000.00 (forty thousand/00), equal to 0.2% of the maximum administrative fine of €20 million, should be applied to Interflora.

In this case, it is also believed that the accessory sanction of publication on the Authority's website of this provision, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Authority's Regulation No. 1/2019, should be applied.

In implementation of the principles set out in Article 83 of the Regulation, the imposition of this accessory sanction appears proportionate in relation to the seriousness and particular disvalue of the conduct subject to censure, taking into account the risk elements for the rights and freedoms of the data subjects (potentially all individuals for whom the above-described collection method was adopted).

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the processing described in the terms of the motivation carried out by Interflora Italia S.p.A., with registered office at via Sorteni, 5, Monza, VAT number 08998971009, unlawful; consequently

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Interflora Italia S.p.A. represented by its legal representative, to pay the sum of €40,000.00 (forty thousand/00) as an administrative pecuniary sanction for the violations indicated in the motivation; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

COMMANDS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €40,000.00 (forty thousand/00) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- a) pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, the publication of this provision as well as, pursuant to Article 166, paragraph 7, of the Code, the publication of this injunction order on the website of the Authority;
- b) pursuant to Article 17 of the Authority's Regulation No. 1/2019, orders the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, March 13, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei